

COMPLETE FILING PACKAGE

Case No. 25CV015715

VIOLA DELORES GARRIS, Petitioner

v.

BANK OF AMERICA, N.A., et al., Respondents

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

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 6. Petitioner's First Request for Production of Documents to All Defendants
 7. Petitioner's First Request for Admissions to All Defendants
 8. Affidavit of Viola Delores Garris
 9. Certificate of Service
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DOCUMENT 1: NOTICE OF FILING

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.;	)
WILMINGTON SAVINGS FUND SOCIETY, FSB	)
AS OWNER TRUSTEE OF THE RESIDENTIAL	)
CREDIT OPPORTUNITIES TRUST VIII-C;	)
RUBIN LUBLIN, LLC; AND ALL OTHERS	)
CLAIMING OR PURPORTING TO CLAIM ANY	)
INTEREST IN PETITIONER’S PROPERTY,	)
Respondents.	)

NOTICE OF FILING OF PETITIONER’S OMNIBUS MOTION TO VACATE, AMENDED PETITION, AND DISCOVERY

PLEASE TAKE NOTICE that Petitioner, Viola Delores Garris, *In Propria Persona Sui Juris*, has this day filed with the Clerk of the Superior Court of Fulton County the following documents, copies of which are attached hereto and served upon all parties:

1. Omnibus Motion to Vacate Order of Dismissal and for Leave to File Amended Petition;
2. Memorandum of Law and Facts in Support of Omnibus Motion;
3. Proposed Order on Omnibus Motion;

4. Amended Verified Petition for Declaratory Judgment, Quiet Title, Injunctive Relief, and Damages;
5. Petitioner's First Request for Production of Documents to All Defendants;
6. Petitioner's First Request for Admissions to All Defendants;
7. Affidavit of Viola Delores Garris; and
8. Certificate of Service.

Respectfully submitted, this 26th day of February, 2026.

Viola Delores Garris, *In Propria Persona Sui Juris*

7050 John Rivers Rd.

Fairburn, GA 30213

DOCUMENT 2: OMNIBUS MOTION

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.;	)
WILMINGTON SAVINGS FUND SOCIETY, FSB	)
AS OWNER TRUSTEE OF THE RESIDENTIAL	)
CREDIT OPPORTUNITIES TRUST VIII-C;	)
RUBIN LUBLIN, LLC; AND ALL OTHERS	)
CLAIMING OR PURPORTING TO CLAIM ANY	)
INTEREST IN PETITIONER’S PROPERTY,	)
Respondents.	)

PETITIONER’S OMNIBUS MOTION TO VACATE ORDER OF DISMISSAL AND FOR LEAVE TO FILE AMENDED PETITION

COMES NOW, Petitioner Viola Delores Garris, an 85-year-old resident of Fulton County, appearing *In Propria Persona Sui Juris*, and respectfully moves this Honorable Court pursuant to O.C.G.A. § 9-11-60(d) and § 9-11-15(a) for an Order (1) vacating the Court’s Order of Dismissal Without Prejudice entered on or about February 19, 2026, and (2) granting Petitioner leave to file the contemporaneously submitted Amended Verified Petition. This motion is based on the interests of justice, excusable neglect, and the legal standard favoring adjudication on the merits.

In support of this Motion, Petitioner states as follows:

1. **Procedural Posture:** This action was initiated by Petitioner, proceeding without counsel, to challenge the validity of a security interest claimed by Respondents and to prevent a wrongful foreclosure on her home of many years. On or about February 19, 2026, the Court dismissed the action without prejudice.

2. **Basis for Vacatur:** The dismissal, while without prejudice, has the practical effect of terminating Petitioner's ability to defend her property rights before a potentially unlawful foreclosure sale occurs. Petitioner, an elder litigant unfamiliar with the complexities of civil procedure, made good faith efforts to state her claims. Any deficiencies in the original Petition constitute excusable neglect for a *pro se* party. Justice requires that this case be decided on its substantive merits, not on a procedural dismissal that resulted from a lack of legal expertise.
3. **Leave to Amend:** O.C.G.A. § 9-11-15(a) provides that leave to amend pleadings "shall be freely given when justice so requires." Petitioner has now prepared a comprehensive Amended Verified Petition (attached hereto) that cures any and all deficiencies of the original filing. The Amended Petition: a. States clear, cognizable claims for relief under Georgia and federal law, including Quiet Title, Declaratory Judgment, Wrongful Foreclosure, and violations of the FDCPA and RESPA; b. Is grounded in specific, verifiable facts and well-established legal precedent; c. Removes any language that could be construed as frivolous or not recognized by the laws of this State, focusing squarely on the legitimate legal issue of standing and chain of title.
4. **Judicial Economy and Prejudice:** Granting this motion serves judicial economy. It allows the core dispute—whether Respondents have the legal right to foreclose—to be resolved in the existing action. Denying the motion would force Petitioner to file a new action, causing unnecessary delay and expense for all parties and the Court. Respondents will suffer no prejudice, as the case is in its infancy, no discovery has occurred, and the Amended Petition provides them with a clear and definite statement of the claims they must defend.

WHEREFORE, for the foregoing reasons and in the profound interest of justice, Petitioner Viola Delores Garris respectfully prays for an Order:

- (1) Vacating the Order of Dismissal Without Prejudice;
- (2) Granting Petitioner leave to file the Amended Verified Petition;
- (3) Deeming the Amended Verified Petition filed as of the date of the Order; and
- (4) Granting such other and further relief as the Court deems just and proper.

Respectfully submitted, this 26th day of February, 2026.

DOCUMENT 3: MEMORANDUM OF LAW AND FACTS

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.;	)
WILMINGTON SAVINGS FUND SOCIETY, FSB	)
AS OWNER TRUSTEE OF THE RESIDENTIAL	)
CREDIT OPPORTUNITIES TRUST VIII-C;	)
RUBIN LUBLIN, LLC; AND ALL OTHERS	)
CLAIMING OR PURPORTING TO CLAIM ANY	)
INTEREST IN PETITIONER’S PROPERTY,	)
Respondents.	)

MEMORANDUM OF LAW AND FACTS IN SUPPORT OF PETITIONER’S OMNIBUS MOTION

INTRODUCTION

This case concerns the fundamental right of a homeowner to demand that any party attempting to seize her property through foreclosure first prove, with competent evidence, its legal authority to do so. Petitioner Viola Delores Garris, an 85-year-old citizen, filed this action to challenge the standing of a series of financial entities that

claim the right to enforce a Security Deed executed in 2006. The Court dismissed the action without prejudice. Petitioner now moves to vacate that dismissal and file an Amended Petition that states multiple valid, cognizable claims for relief, thereby allowing this critical dispute to be decided on its merits.

STATEMENT OF FACTS

1. On or about February 17, 2006, Petitioner Viola Garris executed a promissory note and a Security Deed in favor of the original lender concerning her property at 7050 John Rivers Rd., Fairburn, GA 30213 (the “Property”). The Security Deed was recorded in Deed Book 42164, Page 170 of the Fulton County records.
2. The alleged loan number associated with this transaction is 9160086240.
3. Since 2006, the note and/or the Security Deed have been sold, transferred, and assigned multiple times, passing through various servicers and alleged owners, including Respondent Bank of America, N.A.
4. The current entity claiming the right to foreclose is Respondent **Wilmington Savings Fund Society, FSB as Owner Trustee of the Residential Credit Opportunities Trust VIII-C** (“Wilmington”), a securitized trust.
5. The law firm acting on behalf of Wilmington to execute the non-judicial foreclosure is Respondent Rubin Lublin, LLC.
6. Petitioner disputes that Wilmington is the true holder of the Security Deed with the legal authority to foreclose. Petitioner has reason to believe the chain of assignments is broken and that the transfer of the loan into the Wilmington securitized trust may have been void.
7. Petitioner filed this action to obtain a judicial determination of the parties’ rights and to prevent a wrongful foreclosure. The action was dismissed without prejudice on or about February 19, 2026.

ARGUMENT AND CITATION OF AUTHORITY

I. The Standard for Vacating a Dismissal Favors Adjudication on the Merits.

Georgia law strongly favors the resolution of legal disputes on their merits. A motion to set aside a judgment under O.C.G.A. § 9-11-60(d) is addressed to the sound discretion

of the trial court. That discretion is particularly broad when the dismissal was without prejudice and the moving party is proceeding *pro se*. See, e.g., *Moore v. Butler*, 320 Ga. App. 109 (2013). Here, any defect in the original petition was a result of Petitioner's lack of legal training, not willful disregard for the law. Justice requires vacating the dismissal to allow the filing of a proper Amended Petition.

II. Leave to Amend Should Be Freely Granted.

Under O.C.G.A. § 9-11-15(a), leave to amend "shall be freely given when justice so requires." The Georgia Supreme Court has emphasized that this is a mandatory directive. See *Ford v. Ford*, 243 Ga. 763 (1979). The proposed Amended Petition is not futile; it is meritorious. It states several cognizable claims for relief that, if proven, would entitle Petitioner to judgment. The claims include:

- **Quiet Title (O.C.G.A. § 23-3-60):** A petition to quiet title is the proper vehicle to determine the validity of a contested security deed and remove a cloud from title. Petitioner's Amended Petition properly pleads the elements for a quiet title action.
- **Declaratory Judgment (O.C.G.A. § 9-4-2):** Petitioner seeks a declaration of her rights and the legal status of the Respondents, specifically whether Wilmington has standing to foreclose. This is a classic use of the Declaratory Judgment Act.
- **Wrongful Foreclosure:** A claim for wrongful foreclosure under Georgia law lies when a party attempts to foreclose without the legal authority to do so. See *You v. JP Morgan Chase Bank, N.A.*, 293 Ga. 67 (2013). While *You* held that the note holder need not be the foreclosing party, it implicitly affirmed that the foreclosing party **must** be the holder of the Security Deed. Petitioner's Amended Petition directly challenges this crucial fact.
- **Federal Claims (RESPA/FDCPA):** The Amended Petition raises claims under federal consumer protection statutes, which this Court has jurisdiction to hear.

III. The Proposed Amended Petition States Meritorious Claims.

The core of this dispute is **standing**. The foreclosing party bears the burden of proving it is the secured creditor. O.C.G.A. § 44-14-162.2. This requires demonstrating an unbroken chain of title to the Security Deed. Petitioner's Amended Petition directly challenges this by alleging that the chain of assignments is defective and that the securitization trust (Wilmington) may not have validly acquired the loan under the

terms of its own Pooling and Servicing Agreement (PSA). These are not frivolous claims; they are the central issues in modern foreclosure litigation.

“A non-judicial foreclosure sale is invalid ‘unless notice of the sale shall have been given as required by Code Section 44-14-162.2.’ OCGA § 44-14-162(a). The notice must be sent to the debtor by the ‘secured creditor.’ OCGA § 44-14-162.2(a).” Marques v. JP Morgan Chase Bank, 893 S.E.2d 343 (Ga. Ct. App. 2023).

Petitioner is entitled to use the discovery process to obtain the assignments, the PSA, and other documents necessary to prove whether Wilmington is, in fact, the true “secured creditor.”

CONCLUSION

For the foregoing reasons, this Court should exercise its discretion in the interest of justice, vacate the order of dismissal, and grant Petitioner leave to file her Amended Verified Petition. This will allow the case to proceed to the merits and ensure that Petitioner, an 85-year-old woman, does not lose her home without a full and fair opportunity to challenge the legal authority of those seeking to take it.

Respectfully submitted, this 26th day of February, 2026.

Viola Delores Garris, *In Propria Persona Sui Juris*

DOCUMENT 4: PROPOSED ORDER

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.;	)
WILMINGTON SAVINGS FUND SOCIETY, FSB	)
AS OWNER TRUSTEE OF THE RESIDENTIAL	)
CREDIT OPPORTUNITIES TRUST VIII-C;	)
RUBIN LUBLIN, LLC; AND ALL OTHERS	)
CLAIMING OR PURPORTING TO CLAIM ANY	)
INTEREST IN PETITIONER’S PROPERTY,	)
Respondents.	)

ORDER ON PETITIONER’S OMNIBUS MOTION TO VACATE AND FOR LEAVE TO AMEND

The above-captioned matter having come before the Court on Petitioner’s Omnibus Motion to Vacate Order of Dismissal and for Leave to File Amended Petition, and the Court having considered the motion, the record, and the applicable law, it is hereby ORDERED and ADJUDGED as follows:

[] Petitioner’s Motion is GRANTED.

[] Petitioner’s Motion is DENIED.

If GRANTED, it is further ORDERED that:

1. The Order of Dismissal Without Prejudice entered on or about February 19, 2026, is hereby VACATED.
2. Petitioner is GRANTED leave to file her Amended Verified Petition.
3. The Amended Verified Petition is deemed filed as of the date of this Order.

4. Respondents shall have thirty (30) days from the date of this Order to file their responsive pleadings to the Amended Verified Petition.

SO ORDERED, this _____ day of _____, 2026.

JUDGE, SUPERIOR COURT OF FULTON COUNTY

DOCUMENT 5: AMENDED VERIFIED PETITION

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.;	)
WILMINGTON SAVINGS FUND SOCIETY, FSB	)
AS OWNER TRUSTEE OF THE RESIDENTIAL	)
CREDIT OPPORTUNITIES TRUST VIII-C;	)
RUBIN LUBLIN, LLC; AND ALL OTHERS	)
CLAIMING OR PURPORTING TO CLAIM ANY	)
INTEREST IN PETITIONER’S PROPERTY,	)
Respondents.	)

AMENDED VERIFIED PETITION FOR DECLARATORY JUDGMENT, QUIET TITLE, INJUNCTIVE RELIEF, AND DAMAGES

COMES NOW, Petitioner Viola Delores Garris, and files this Amended Verified Petition against Respondents Bank of America, N.A. (“BOA”), Wilmington Savings Fund Society, FSB as Owner Trustee of the Residential Credit Opportunities Trust VIII-C (“Wilmington”), Rubin Lublin, LLC (“Rubin Lublin”), and All Others Claiming an Interest, and in support shows the Court the following:

THE PARTIES

1. Petitioner Viola Delores Garris is an 85-year-old individual residing at 7050 John Rivers Rd., Fairburn, Fulton County, Georgia 30213 (the “Property”).
2. Respondent BOA is a national banking association that may be served through its registered agent for service in Georgia.
3. Respondent Wilmington is a foreign business entity that claims to be the current secured creditor and may be served through its registered agent for service in Georgia.
4. Respondent Rubin Lublin is a Georgia limited liability company acting as the foreclosure attorney for Wilmington and may be served at its principal office located at 3145 Avalon Ridge Place, Suite 100, Peachtree Corners, GA 30071.

JURISDICTION AND VENUE

1. This Court has subject matter jurisdiction over claims for quiet title, declaratory judgment, injunctive relief, and damages pursuant to the Constitution and laws of the State of Georgia, including O.C.G.A. § 23-3-60 and § 9-4-1.
2. Venue is proper in Fulton County as the Property is located here and Respondents transact business in this county.

FACTUAL ALLEGATIONS

1. On or about February 17, 2006, Petitioner executed a Security Deed concerning the Property, which was recorded in Deed Book 42164, Page 170, of the Fulton County Superior Court records.
2. The loan associated with the Security Deed has been sold, assigned, and/or transferred through a series of transactions, a process known as securitization.
3. Respondents now contend that Wilmington is the ultimate holder of the Security Deed and has the legal authority to conduct a non-judicial foreclosure sale of the

Property.

4. Respondent Rubin Lublin, acting on behalf of Wilmington, has initiated foreclosure proceedings.
5. Petitioner disputes that Wilmington is the lawful “secured creditor” as defined by O.C.G.A. § 44-14-162.2.
6. Upon information and belief, the chain of assignments purporting to transfer the Security Deed to Wilmington is defective and contains one or more void assignments.
7. Upon information and belief, the attempted transfer of Petitioner’s loan into the Residential Credit Opportunities Trust VIII-C occurred after the trust’s closing date as specified in its Pooling and Servicing Agreement (PSA), rendering the transfer void under New York trust law, which typically governs such agreements.
8. As a result, the trust (Wilmington) never legally acquired the Security Deed and therefore lacks standing to foreclose.
9. Respondents have failed to provide Petitioner with proof of their authority to foreclose, despite repeated requests.

COUNT I - QUIET TITLE (O.C.G.A. § 23-3-60 et seq.)

1. Petitioner incorporates the preceding paragraphs as if fully restated herein.
2. A cloud exists on Petitioner’s title to the Property, namely the Security Deed recorded at Deed Book 42164, Page 170, which Respondents wrongfully claim the authority to enforce.
3. This adverse claim by Respondents is invalid because they cannot prove an unbroken, legally sufficient chain of title to the Security Deed.
4. Petitioner requests that the Court, pursuant to its authority under O.C.G.A. § 23-3-60, act *in rem* and issue a decree that the Security Deed is void and unenforceable by Respondents, and that title to the Property be quieted in Petitioner’s name, free and clear of any claim by Respondents.

COUNT II - DECLARATORY JUDGMENT (O.C.G.A. § 9-4-1 et seq.)

1. Petitioner incorporates the preceding paragraphs as if fully restated herein.
2. An actual controversy exists between Petitioner and Respondents regarding their respective rights and legal relations under the Security Deed.

3. Petitioner contends that Respondents lack standing to foreclose. Respondents contend the opposite.
4. Petitioner requests a judicial declaration that Respondents are not the secured creditor and have no legal authority to exercise the power of sale contained in the Security Deed.

COUNT III - WRONGFUL FORECLOSURE (ATTEMPT)

1. Petitioner incorporates the preceding paragraphs as if fully restated herein.
2. Respondents have initiated the process of a non-judicial foreclosure sale of the Property.
3. This attempted foreclosure is wrongful because Respondents lack the legal authority to initiate it, as they are not the secured creditor as required by O.C.G.A. § 44-14-162.2.
4. The wrongful attempt to foreclose has caused Petitioner extreme mental anguish, emotional distress, and fear of losing her home of many years. Petitioner is entitled to damages for this harm.

COUNT IV - VIOLATION OF FAIR DEBT COLLECTION PRACTICES ACT (FDCPA)

1. Petitioner incorporates the preceding paragraphs as if fully restated herein.
2. Respondent Rubin Lublin is a “debt collector” as defined by the FDCPA, 15 U.S.C. § 1692a(6).
3. Rubin Lublin has violated the FDCPA by making false and misleading representations regarding the legal status of the alleged debt and by threatening to take an action (foreclosure) that cannot legally be taken, in violation of 15 U.S.C. § 1692e and § 1692f.
4. As a result of these violations, Petitioner is entitled to statutory damages, actual damages, and attorney’s fees.

PRAYER FOR RELIEF

WHEREFORE, Petitioner Viola Delores Garris respectfully prays for the following relief:

- A. That the Court issue a Temporary Restraining Order and Preliminary Injunction enjoining Respondents from advertising or conducting a foreclosure sale of the Property pending the final outcome of this litigation;
- B. A decree quieting title to the Property in Petitioner's name;
- C. A declaratory judgment that Respondents lack standing to foreclose;
- D. Compensatory and punitive damages for wrongful foreclosure and mental anguish;
- E. Statutory and actual damages for violations of the FDCPA;
- F. Costs of litigation; and
- G. Such other and further relief as the Court deems just and equitable.

VERIFICATION

I, Viola Delores Garris, have read the foregoing Amended Verified Petition and do hereby swear or affirm under penalty of perjury that the factual allegations contained therein are true and correct to the best of my knowledge and belief.

Viola Delores Garris

Sworn to and subscribed before me this

_____ day of _____, 2026.

NOTARY PUBLIC

My Commission Expires: _____

DOCUMENT 6: FIRST REQUEST FOR PRODUCTION OF DOCUMENTS

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.; et al.,	)
Respondents.	)

PETITIONER'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS TO ALL RESPONDENTS

TO: All Respondents

C/O THEIR COUNSEL OF RECORD

Pursuant to O.C.G.A. § 9-11-34, Petitioner Viola Delores Garris requests that each Respondent produce the following documents for inspection and copying at the office of Petitioner's choosing within thirty (30) days of service of this request. These requests are continuing in nature.

DEFINITIONS

A. **"Loan"** refers to the alleged mortgage loan transaction entered into by Viola Delores Garris on or about February 17, 2006, concerning the property at 7050 John Rivers Rd., Fairburn, GA 30213, identified by Respondents as loan number 9160086240.

B. **"Note"** refers to the original promissory note executed by Viola Delores Garris in connection with the Loan.

C. **"Security Deed"** refers to the original Security Deed executed by Viola Delores Garris in connection with the Loan, recorded at Deed Book 42164, Page 170 of the Fulton County records.

D. **"You"** or **"Your"** refers to the Respondent to whom this request is directed, including its agents, employees, and attorneys.

DOCUMENTS TO BE PRODUCED

1. The original wet-ink **Note**, front and back, including all allonges.
2. A complete and legible copy of the original **Security Deed**.
3. A complete and unbroken chain of all assignments, transfers, or sales of the **Security Deed**, from the original grantee to the current purported holder, Respondent Wilmington. Each document must be a legible, recorded copy.
4. A complete and unbroken chain of all endorsements, transfers, or sales of the **Note**, from the original payee to the current purported holder.
5. The complete, unredacted **Pooling and Servicing Agreement (PSA)**, including all schedules and exhibits, for the Residential Credit Opportunities Trust VIII-C (the "Trust").
6. All documents evidencing the transfer of the **Loan** (both the Note and the Security Deed) into the Trust, including but not limited to the Mortgage Loan Purchase Agreement and any assignment and assumption agreements.
7. A certified copy of the Trust's formation documents and proof of its current legal status.
8. All communications between You and any other Respondent concerning the **Loan**.
9. A complete life-of-loan transaction history, showing every debit and credit from inception to the present date.
10. All notices sent to Petitioner regarding any change in the servicer of the **Loan**.
11. All pre-foreclosure notices sent to Petitioner as required by O.C.G.A. § 44-14-162.2.
12. All documents identifying the individual or entity with full authority to negotiate, amend, and modify all terms of the **Loan**.

Respectfully submitted, this 26th day of February, 2026.

Viola Delores Garris, *In Propria Persona Sui Juris*

DOCUMENT 7: FIRST REQUEST FOR ADMISSIONS

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.; et al.,	)
Respondents.	)

PETITIONER’S FIRST REQUEST FOR ADMISSIONS TO ALL RESPONDENTS

TO: All Respondents

C/O THEIR COUNSEL OF RECORD

Pursuant to O.C.G.A. § 9-11-36, Petitioner Viola Delores Garris requests that each Respondent, within thirty (30) days of service, make the following admissions for the purpose of this action only. If you fail to respond within thirty (30) days, each matter will be deemed admitted.

REQUEST FOR ADMISSION NO. 1: Admit that You are not in possession of the original wet-ink promissory note executed by Viola Delores Garris on or about February 17, 2006.

REQUEST FOR ADMISSION NO. 2: Admit that the Pooling and Servicing Agreement for the Residential Credit Opportunities Trust VIII-C has a closing date.

REQUEST FOR ADMISSION NO. 3: Admit that the alleged transfer of the Garris loan into the Residential Credit Opportunities Trust VIII-C occurred after the trust’s closing date.

REQUEST FOR ADMISSION NO. 4: Admit that New York trust law governs the Residential Credit Opportunities Trust VIII-C.

REQUEST FOR ADMISSION NO. 5: Admit that under New York trust law, a transfer of a mortgage loan into a securitized trust after the trust’s closing date is void.

REQUEST FOR ADMISSION NO. 6: Admit that Respondent Wilmington did not acquire the Garris Security Deed via a valid, recorded assignment.

REQUEST FOR ADMISSION NO. 7: Admit that You are not the “secured creditor” as defined by O.C.G.A. § 44-14-162.2.

Respectfully submitted, this 26th day of February, 2026.

Viola Delores Garris, *In Propria Persona Sui Juris*

DOCUMENT 8: AFFIDAVIT OF VIOLA DELORES GARRIS

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.; et al.,	)
Respondents.	)

AFFIDAVIT OF VIOLA DELORES GARRIS

Personally appeared before the undersigned attesting officer, duly authorized to administer oaths, Viola Delores Garris, who, after being duly sworn, deposes and states under penalty of perjury as follows:

1. My name is Viola Delores Garris. I am over 18 years of age, of sound mind, and competent to testify to the matters stated herein.

2. I am the Petitioner in the above-styled action. The facts stated in this affidavit are based on my personal knowledge.
3. I reside at 7050 John Rivers Rd., Fairburn, Georgia 30213 (the "Property"). I have lived in this home for many years.
4. I am 85 years old.
5. I am not a lawyer and I am not trained in legal procedure. I have done my best to represent myself and protect my home.
6. I filed this lawsuit because I received notices that my home was going to be sold in a foreclosure sale. I do not believe the company trying to sell my home, Wilmington Savings Fund Society, has the legal right to do so.
7. I have never had any direct dealings with Wilmington Savings Fund Society. I did not borrow money from them.
8. I have asked the Respondents to provide me with proof that they own my loan and have the right to foreclose, but they have not provided me with a clear chain of ownership.
9. The threat of losing my home has caused me severe stress, anxiety, and sleepless nights. It has negatively impacted my health and well-being.
10. The facts stated in my Amended Verified Petition are true and correct to the best of my knowledge and belief.
11. I respectfully ask this Court to give me a fair chance to be heard and to have this case decided on the evidence and the law.

This, the 26th day of February, 2026.

Viola Delores Garris

Sworn to and subscribed before me this

_____ day of _____, 2026.

NOTARY PUBLIC

My Commission Expires: _____

DOCUMENT 9: CERTIFICATE OF SERVICE

IN THE SUPERIOR COURT OF FULTON COUNTY

STATE OF GEORGIA

VIOLA DELORES GARRIS,	)
Petitioner,	)
	) CASE NO. 25CV015715
v.	)
BANK OF AMERICA, N.A.; et al.,	)
Respondents.	)

CERTIFICATE OF SERVICE

I hereby certify that I have this day served a copy of the foregoing **Petitioner's Omnibus Motion to Vacate, Amended Petition, and Discovery** upon all parties of record in this action by causing a true and correct copy of the same to be served via the Court's electronic filing system and/or by U.S. Mail, properly addressed and with sufficient postage affixed thereto, to the following counsel of record:

For Respondent Bank of America, N.A.:

Natalina N. DePina

McGuireWoods, LLP

1075 Peachtree Street NE, 35th Floor

Atlanta, GA 30309-3900

For Respondent Rubin Lublin, LLC:

Patty Bramlett

Rubin Lublin, LLC

3145 Avalon Ridge Place, Suite 100

Peachtree Corners, GA 30071

For Respondent Wilmington Savings Fund Society, FSB:

[Address for Counsel, if known, otherwise serve via Registered Agent]

This 26th day of February, 2026.

Viola Delores Garris, *In Propria Persona Sui Juris*